

N. Observations by third parties

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1. Introduction

Under Art. 115 EPC, any third party may present, in proceedings before the EPO, following publication of the European patent application, observations concerning the patentability of the invention to which the application or patent relates. There are no fees or deadlines for presenting such observations. The third party is not a party to the proceedings. R. 114(1) EPC requires that any such observations be filed in an official language of the EPO, while R. 114(2) EPC states that they will be communicated to the applicant or patent proprietor. Third-party observations are an integral part of the files and, as such, open to inspection under Art. 128 EPC. More information can be found in the Guidelines (see e.g. A-VII, 3.5, A-XI, 2.1, D-X, 4.5 and E-VI, 3 – March 2022 version), the decision of the President of the EPO dated 10 May 2011 (OJ 2011, 418) and the notice from the EPO dated 5 July 2017 concerning the filing and processing of third-party observations (OJ 2017, A86).

Observations must be restricted to the substantive requirements of the EPC (Art. 52 to 57 EPC). Most observations concern lack of novelty and/or lack of inventive step. In the proceedings for petition for review R.18/11 third-party observations were filed. The Enlarged Board considered the observations to be inadmissible, because according to Art. 115 EPC such submissions had to concern patentability, and patentability issues could not be the subject of review proceedings.

EPO departments have discretion under Art. 114(1) EPC to admit third-party observations of their own motion, in particular where they consider them to have some bearing on the outcome of the proceedings (T 1216/12). Observations that contain legal or technical information relevant for the decision in hand will generally be considered (T 866/91).

Art. 115 EPC helps to ensure that no legally invalid patents are granted or maintained. The public must be able to rely as far as possible on the legal validity of a patent granted by the EPO (T 156/84, OJ 1988, 372; T 60/91, OJ 1993, 551; T 1495/09). The provision protects the public interest in ensuring that no European patent is granted which does not meet the EPC requirements and, to that end, permits third parties to act as, so to speak, the public's "mouthpiece" by providing additional information to support the expertise within the EPO (G 2/19, OJ 2020, A87).

2. Formal requirements

2.1. Language of the documents

Under R. 114(1) EPC, any observations by a third party must be filed **in writing** in an official language of the EPO, i.e. English, French or German; otherwise, they are deemed not to have been received. Observations not filed in an official language and so deemed not to have been received are nevertheless added to the file and so accessible to the public under Art. 128(4) EPC. Third-party observations will be communicated to the applicant or patent proprietor even if they have not been filed in one of the prescribed official languages (Art. 14(4), R. 114(1) EPC).

R. 114(1) EPC also explicitly provides for applicability of R. 3(3) EPC, which states that **documentary evidence** and, in particular, publications substantiating an argument may be filed in any language. The EPO may, however, require that a translation in one of its official languages be filed, within a period to be specified. If a translation is not filed in due time, the EPO may disregard the document in question.

2.2. When can third-party observations be filed?

Art. 115 EPC specifies that observations cannot be filed until after publication of the European patent application but sets no upper time limit for their presentation by persons wishing to make adverse observations concerning the patentability of inventions claimed in patent applications/patents. This means that observations can also be filed during opposition proceedings, even after expiry of the opposition period, and during appeal proceedings (T 390/90, G 9/91, OJ 1993, 408, T 1756/11). Art. 115 EPC explicitly covers all proceedings before the EPO and so applies, in principle, to revocation and limitation proceedings too.

2.3. Pending proceedings

The provision of Art. 115(1), second sentence, EPC that a third party shall not be "a party to proceedings before the European Patent Office" assumed that proceedings were pending before the EPO.

In T 580/89 (OJ 1993, 218), observations submitted by a third party were not added to the file until after the decision had been taken and therefore not considered.

In T 690/98 the question arose of whether observations filed by a third party could give rise to a reassessment by the Office of its own motion, under Art. 114(1) EPC 1973, of the patentability of the subject-matter of the contested patent, even if the appeal proved to be inadmissible. In the board's view, the answer was no, since the admissibility of an appeal, according to Art. 110(1) EPC 1973, was a prerequisite for examination of the appeal. The substance of the contested decision could only be examined when admissibility was established. Therefore, objections by third parties lodged at the appeal stage were not to be examined by the Office of its own motion as there no appeal proceedings were pending.

2.4. Anonymously filed observations

As stated in the EPO notice dated 5 July 2017 concerning the filing and processing of third-party observations (OJ 2017...A86), third-party observations may be filed anonymously.

In the inter partes proceedings T 735/04, document D6, a patent application by one of the patent proprietors, was cited in anonymous third party observations. Since D6 was highly relevant for the patentability of the claimed subject-matter and could cause the patent to be revoked, it was introduced into the proceedings.

In T 146/07 anonymous third-party observations were received by the board at a very late stage. According to R. 114(1) EPC, any observations by a third party must be filed in writing. The board stated that this requirement implied that the observations have to be signed (see R. 50(3) and 86 EPC) in order to allow an identification of the third party. Identification is particularly important in the context of opposition proceedings in order to allow the competent organ of the EPO to verify whether the observations have indeed been filed by a third-party rather than by a party to the proceedings. Otherwise, a party might be tempted to submit late observations and/or documents by means of anonymous third party observations in order to avoid negative procedural consequences such as apportionment of costs. The board was aware that anonymously filed third-party observations might nevertheless be adopted by a party to the proceedings as its own or may even trigger objections by the competent organ of the EPO of its own motion (see above T 735/04). In the absence of such a further procedural act, anonymous third-party observations are to be disregarded altogether. This view is in line with the decisions G 1/03 and G 2/03 (OJ 2004, 413 and 448) in which the Enlarged Board of Appeal refused to take into account an anonymously filed third-party statement. In T 1439/09 and T 1635/15 the board agreed with this line of reasoning. Therefore, the anonymous observations filed under Art. 115 EPC were deemed not to have been filed and were disregarded by the board.

In view of these decisions, the board in T 1756/11 held that anonymous third-party observations made at a very late stage in the opposition appeal proceedings should be disregarded on formal grounds, in order to preclude covert abuse of procedure by parties to the proceedings. Likewise in T 1181/12, T 379/13 and T 345/15 the board did not take

into consideration third-party observations which were submitted anonymously during the appeal proceedings.

In T 1336/09, however, the board came to the conclusion that in this **ex parte case** the anonymous character of the third-party observations did not bar them from being admitted into the procedure. The board referred to earlier decisions of the boards, which did admit such observations, without apparent misgivings in relation to their anonymous character (T 735/04, T 258/05). Unlike T 146/07, which had concerned an inter partes appeal, the case at hand here (T 1336/09) concerned ex parte proceedings, in which the appellant was the sole party and could raise new issues or submit new prior art at any time – as could the board of its own motion by virtue of Art. 114(1) EPC. Accordingly, the risk of anonymous third-party observations providing a cover for procedural abuse could largely be excluded.

2.5. Reasons for observations

R. 114(1) EPC requires, among other things, that third-party observations state the grounds on which they are based.

In T 189/92 the board held that it was the responsibility of the third party to ensure that the facts and evidence filed were not only unequivocally clear but also as complete as possible, so that they could be handled directly by the investigating instance without doubt and without further inquiry.

In T 908/95, the evidence adduced to show fulfilment of the criteria for establishing public prior use, in particular public availability, did not substantiate or prove such fulfilment to the extent that the allegation could be accepted. The board found that the additional inquiries needed to prove it, which might even include the hearing of witnesses, could only be conducted with the co-operation of the "third party", but that this was impossible where the person in question was not a party to the proceedings. The third party's observations therefore had to be disregarded (see also T 73/86).

In T 301/95 (OJ 1997, 519), the opposition division had disregarded third-party observations as to a claim of public prior use, as the alleged facts had not been proven with near certainty.

3. Third party's legal status

3.1. General issues

Art. 115, first sentence, EPC states that **any** third party may present observations. There is no requirement to state whether the third party is acting in its own name or on behalf of someone else (T 1224/09).

In T 811/90, the patentee had filed an appeal against a decision of the opposition division concerning the removal of certain documents from the public part of the file. The opponent was not a party to the impugned decision and was consequently not entitled to be a party

to the proceedings before the board. His request was therefore inadmissible but was admitted as an observation by a "third party".

Similarly the board in T 446/95 held that the intervention of a company was inadmissible, so its auxiliary requests were also inadmissible. However, there was nothing to prevent the company's observations and the documents it had filed from being dealt with under Art. 115 EPC 1973 (T 223/11).

In T 7/07, the board agreed with the findings in T 1196/08 that an intervention based on proceedings for infringement of a patent that has effect in a particular state solely on the basis of national law is inadmissible. The intervener's submissions were consequently regarded as third-party observations under Art. 115 EPC.

In T 887/04 of 14 November 2006, the board found that, although the intervention had to be held inadmissible, account had to be taken of document D5 cited by the intervener under Art. 115 EPC 1973 for the purposes of examining novelty and inventive step, because, despite its belated submission, it was highly relevant.

In T 1860/13 the board stated that with the withdrawal of their oppositions, the opponents renounced to their positions as parties to the proceedings and accordingly to any active role in them. The fact that the opposition division continued ex officio with the examination of the oppositions did not affect this. The submissions filed by opponent III, following the filing of the statement of grounds by the appellant (patent proprietor), were therefore regarded as observations made by a third party.

3.2. Third party's procedural rights

According to Art. 115, second sentence, EPC a third party does not become a party to the proceedings. In principle, therefore, third parties have none of the procedural rights associated with such status, in particular the right to appeal and the right to be heard (T 1756/11; G 2/19, OJ 2020, A87). In T 831/17 of 21 October 2019, the board observed that the EPC legislator had decided to confer a right of appeal only on parties to proceedings and not on authors of third-party observations. It was held in G 2/19 that a third party does not become a party to proceedings by virtue of its comments having been considered in those proceedings. A third party's lack of status as a party to the proceedings also goes hand in hand with a lack of any adverse effect, for legal purposes, ensuing from the decision taken in those proceedings. That is consistent with the object and purpose of Art. 115, first sentence, EPC.

In T 951/91 (OJ 1995,202) the board found that by interpreting Art. 115 EPC 1973 in the light of their object and purpose, it was clear that they were intended exclusively to cut down, and not to extend, the rights of third parties, still less to extend their rights beyond the rights of parties to the EPO (see also T 1756/11, T 1528/13 and T 2255/15).

According to T 390/07 the admissibility of third-party observations is entirely a matter for the board as a third party within the meaning of Art. 115 EPC is not a party to the proceedings and has no more than an opportunity to "present observations". While it is